Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

December 1, 2023

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1043 - Demand for settlement

Dear Claims Representative:

Our office represents Catherine Duffy in connection with the motor vehicle collision that occurred on June 3, 2023. Our client was lawfully turning left at an intersection when your insuerd failed to yield the right of way and struck our client's vehicle. Police documentation and the physical damage to both vehicles support our client's account that your insured was solely responsible for this collision.

As a direct result of the impact, our client suffered neck and back strains. Our client has since undergone physical therapy and continues to experience pain, stiffness, and reduced mobility that interfere with work and daily activities. Medical records and treatment notes documenting these injuries are enclosed.

Under the circumstances, liability is clear, and your insured's negligence has caused substantial harm. We are prepared to resolve this matter without litigation. However, if a fair settlement is not reached promptly, we will file suit and seek all damages available under the law, including medical expenses, lost income, pain and suffering, and related costs.

Our client will accept $42,000.00 to settle all claims arising from this incident. This offer will remain open for thirty days from the date of this letter. Please direct all future communications regarding this matter to our office.

Expert review: Matthew Moore, biomechanical engineer

Sincerely,

Kyle Sanders
Marshall & Dominguez LLP